

UNITED STATES DISTRICT COURT
DISTRICT OF NEW YORK

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ROBERT LEE,

Plaintiffs,

-against-

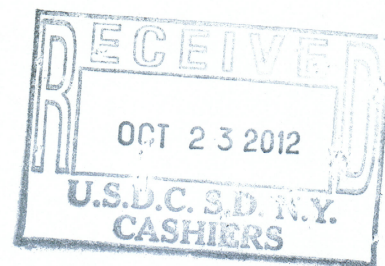
THE CITY OF NEW YORK, POLICE OFFICER JOSE SANTIAGO, POLICE OFFICER HARRY BONHOMME, POLICE OFFICER EDWIN PEREZ, SERGEANT EDSON GARCIA, POLICE OFFICER/CORRECTIONS OFFICER EDWARD ROSADO, POLICE OFFICER/CORRECTIONS OFFICER JOSE DELVALLE, INSPECTOR DERMOT SHEA, and SERGEANT SERGEANT FRANTZ LOUIS,

Defendants.
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FIRST AMENDED COMPLAINT

12 Civ. 2558 (PAE)

JURY TRIAL DEMANDED



NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of plaintiff's rights under the Constitution of the United States.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

3. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343, and 1367(a).

4. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 (b) and (c).

JURY DEMAND

5. Plaintiff demands a trial by jury in this action.

PARTIES

6. Plaintiff Robert Lee (“Plaintiff” or “Mr. Lee”), an African-American male, is a resident of Bronx County in the City and State of New York.

7. Defendant The City of New York is a municipal organization organized under the laws of the State of New York. It operates the New York City Police Department (“NYPD”), a department or agency of defendant The City of New York. The NYPD is responsible for the appointment, training, supervision, promotion, and discipline of police officers and supervisory police officers, including the individually named defendants herein.

8. Defendant Police Officer Jose Santiago (“Santiago”), at all times relevant herein, was an officer, employee, and agent of Defendant The City of New York.

9. Defendant Santiago is sued in his individual and official capacities.

10. At all times relevant herein, Defendant Santiago was acting within the scope of his employment with Defendant The City of New York.

11. At all times relevant herein, Defendant Santiago was acting under color of state law.

12. Defendant Police Officer Harry G. Bonhomme (“Bonhomme”), at all times relevant herein, was an officer, employee, and agent of Defendant The City of New York.

13. Defendant Bonhomme is sued in his individual and official capacities.

14. At all times relevant herein, Defendant Bonhomme was acting within the scope of his employment with Defendant The City of New York.

15. At all times relevant herein, Defendant Bonhomme was acting under color of state law.

16. Defendant Police Officer Edwin Perez (“Perez”), at all times relevant herein, was an officer, employee, and agent of Defendant The City of New York.

17. Defendant Perez is sued in his individual and official capacities.

18. At all times relevant herein, Defendant Perez was acting within the scope of his employment with Defendant The City of New York.

19. At all times relevant herein, Defendant Perez was acting under color of state law.

20. Defendant Sergeant Edson Garcia (“Garcia”), at all times relevant herein, was a supervisor, officer, employee, and agent of Defendant The City of New York.

21. Defendant Garcia is sued in his individual and official capacities.

22. At all times relevant herein, Defendant Garcia was acting within the scope of his employment with Defendant The City of New York.

23. At all times relevant herein, Defendant Garcia was acting under color of state law.

24. Defendant Police Officer/Corrections Officer Edward Rosado (“Rosado”), at all times relevant herein, was an officer, employee, and agent of Defendant The City of New York.

25. Defendant Rosado is sued in his individual and official capacities.

26. At all times relevant herein, Defendant Rosado was acting within the scope of his employment with Defendant The City of New York.

27. At all times relevant herein, Defendant Rosado was acting under color of state law.

28. Defendant Police Officer/Corrections Officer Jose Delvalle (“Delvalle”), at all times relevant herein, was an officer, employee, and agent of Defendant The City of New York.

29. Defendant Delvalle is sued in his individual and official capacities.

30. At all times relevant herein, Defendant Delvalle was acting within the scope of his employment with Defendant The City of New York.

31. At all times relevant herein, Defendant Delvalle was acting under color of state law.

32. Defendant Inspector Dermot Shea (“Shea”), at all times relevant herein, was a supervisor, officer, employee, and agent of Defendant The City of New York.

33. Defendant Shea is sued in his individual and official capacities.

34. Defendant Shea devised, authorized, and enforced policies and practices related to stopping, searching, strip-searching, body cavity searching, arresting, prosecuting, quotas, productivity goals, racial profiling, and overtime pay.

35. At all times relevant herein, Defendant Shea was acting within the scope of his employment with Defendant The City of New York.

36. At all times relevant herein, Defendant Shea was acting under color of state law.

37. Defendant Sergeant Frantz Louis (“Louis”), at all times relevant herein, was a supervisor, officer, employee, and agent of Defendant The City of New York.

38. Defendant Louis is sued in his individual and official capacities.

39. At all times relevant herein, Defendant Louis was acting within the scope of his employment with Defendant The City of New York.

40. At all times relevant herein, Defendant Louis was acting within under color of state law.

STATEMENT OF FACTS

41. On or about April 21, 2009, at approximately 2:00 p.m., Mr. Lee was lawfully present near the intersection of 169th Street and Sheridan Avenue, Bronx County, City and State of New York with no criminality afoot.

42. Defendants Bonhomme and Santiago approached Mr. Lee.

43. Defendants Bonhomme and Santiago stopped Mr. Lee.

44. The stop was performed without reasonable suspicion or probable cause.

45. Defendants Bonhomme and Santiago demanded identification and an explanation for Mr. Lee's presence in the area.

46. Defendants Bonhomme and Santiago searched Mr. Lee.

47. The search was conducted without reasonable suspicion or probable cause.

48. At some point, Defendants Perez and Garcia arrived at the location.

49. Defendants Bonhomme, Santiago, and Perez arrested Mr. Lee.

50. Defendants Bonhomme, Santiago, and Perez charged Mr. Lee with violations of violations of N. Y. Penal Law §§ 221.40, 221.10(1), and 221.05.

51. Defendants Bonhomme, Santiago, and Perez arrested Mr. Lee without probable cause.

52. The arrest was approved by Defendant Garcia.

53. Mr. Lee was transported to the 44th Precinct.

54. At the 44th Precinct, Defendants Bonhomme and Santiago conducted a strip-search and body cavity search of Mr. Lee.

55. Defendants Garcia and Perez were aware that Defendants Bonhomme and Santiago intended to conduct a strip-search and body cavity search of Mr. Lee and did nothing to stop it.

56. The strip-search and body cavity search of Mr. Lee by Defendants Bonhomme and Santiago was done without reasonable suspicion, probable cause, or legal authority.

57. Mr. Lee was transported to Bronx County Central Booking.

58. At Bronx County Central Booking, Defendants Rosado and/or Delvalle conducted a strip-search and body cavity search of Mr. Lee.

59. Defendant Louis was aware that Defendants Rosado and/or Delvalle intended to conduct a strip search and body cavity search of Mr. Lee, and did nothing to stop it.

60. The strip-search and body cavity search of Mr. Lee by Defendants Rosado and/or Delvalle was done without reasonable suspicion, probable cause, or legal authority.

61. As a result of the foregoing actions, Mr. Lee suffered, *inter alia*, constitutional violations, emotional distress, and humiliation.

FIRST CAUSE OF ACTION
42 U.S.C. § 1983

62. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

63. Defendants, by their conduct toward plaintiff as alleged herein, violated plaintiff's rights guaranteed by 42 U.S.C. § 1983, the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

64. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein alleged.

SECOND CAUSE OF ACTION
Unlawful Stop and Search

65. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

66. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched Plaintiff without reasonable suspicion or probable cause

67. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein alleged.

THIRD CAUSE OF ACTION
False Arrest

68. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

69. Defendants violated the Fourth and Fourteenth Amendments because they arrested Plaintiff without probable cause.

70. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein alleged.

FOURTH CAUSE OF ACTION
Excessive Force

71. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

72. Defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on Plaintiff.

73. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein alleged.

FIFTH CAUSE OF ACTION
Denial of Substantive Due Process

74. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

75. The individual defendants created false evidence against plaintiff.

76. The individual defendants forwarded false evidence to prosecutors in the Bronx County District Attorney's Office.

77. In creating false evidence against Plaintiff, and in forwarding false evidence to prosecutors, the individual defendants violated plaintiff's right to substantive due process under the Due Process Clause of the Fifth and Fourteenth Amendments of the Constitution of the United States.

78. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein alleged.

SIXTH CAUSE OF ACTION
Malicious Abuse of Process

79. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

80. The individual defendants issued legal process to place plaintiff under arrest.

81. The individual defendants arrested plaintiff in order to obtain collateral objectives outside the legitimate ends of the legal process, to wit, to cover up their unlawful stop, search, and assault of Plaintiff.

82. The individual defendants acted with intent to do harm to plaintiff without excuse or justification.

83. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages herein alleged.

SEVENTH CAUSE OF ACTION
Failure to Intervene

84. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

85. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct; had an opportunity to prevent such conduct; had a duty to intervene and prevent such conduct; and failed to intervene.

86. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, and Fourteenth Amendments of the Constitution of the United States.

87. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages herein alleged.

EIGHTH CAUSE OF ACTION
Equal Protection Clause under 42 U.S.C. § 1983

88. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

89. The Defendants' conduct was tantamount to discrimination against Plaintiff based on his ethnicity. Other individuals who are not African-American are not, *inter alia*, falsely arrested; conspired against; and strip-searched. This disparate treatment caused Plaintiff to suffer serious injuries.

90. As a result of the foregoing, Plaintiff was deprived of his rights under the Equal Protection Clause of the Constitution of the United States, and is thereby entitled to damages.

NINTH CAUSE OF ACTION
Conspiracy under 42 U.S.C. § 1983

91. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

92. The defendants jointly participated in the deprivation of plaintiff's constitutional rights as set forth herein.

93. The defendants conspired in the deprivation of plaintiff's constitutional rights by collectively lying about plaintiff's actions and conduct, and intentionally withholding and/or

destroying exculpatory evidence in order to support the defendants' fabricated version of the events.

94. As a result of the defendants' malicious efforts to damage plaintiff, plaintiff's liberty was restricted, he was restrained, injured while in custody, subjected to handcuffing, and, among other things, falsely arrested and prosecuted.

95. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages herein alleged.

TENTH CAUSE OF ACTION
Supervisory Liability under 42 U.S.C. § 1983

96. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

97. Defendants Shea, Louis, and Garcia, all supervisors, personally caused plaintiff's constitutional injuries by being deliberately or consciously indifferent to the rights of others in failing to properly supervise their subordinate employees regarding, *inter alia*, the adequate and proper investigation of the underlying facts that preceded plaintiff's arrest; by approving plaintiff's arrest despite the availability of exculpatory evidence and/or the lack of probable cause; and allowing plaintiff to be strip- and body cavity searched..

98. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages herein alleged.

ELEVENTH CAUSE OF ACTION
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99. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

100. This is not an isolated incident. Defendant The City of New York, through its policies, customs, and practices, directly caused the constitutional violations suffered by plaintiff.

101. Defendant The City of New York, through the NYPD, has had, and still has, hiring practices that it knows will lead to the hiring of police officers lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the Constitution of the United States and is indifferent to the consequences.

102. Defendant The City of New York, through the NYPD, has a *de facto* quota policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence, and perjury.

103. Defendant The City of New York, through the NYPD, has *de facto* productivity goals that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence, and perjury.

104. Defendant The City of New York, through the NYPD, has a *de facto* overtime policy that encourages and incentivizes unlawful stops, unlawful searches, false arrests, the fabrication of evidence, and perjury.

105. Defendant The City of New York, at all relevant times, was aware that the individual defendants routinely committed constitutional violations such as those at issue here and has failed to change its policies, practices, and customs to stop this behavior.

106. Defendant The City of New York, at all relevant times, was aware that the individual defendants are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

107. Defendant The City of New York, through the NYPD and New York City Department of Corrections, has *de facto* policies that encourage strip-searches and body cavity searches.

108. These policies, practices, and customs were the moving force behind plaintiff's injuries.

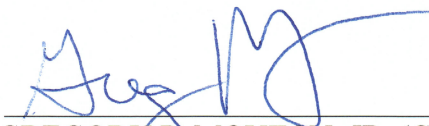
PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorney's fees and costs pursuant to 28 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: New York, New York
October 23, 2012

By:



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